

APPENDIX: EXHIBIT OF ATTORNEY MISCONDUCT & SPOILIATION

In Re: Bennett v. Manning / WSBA Complaint against Nancy A. Gass & Mark M. Demaray

I. DIRECT EVIDENCE OF SPOILIATION & CANDOR VIOLATIONS **(NANCY A. GASS)**

A. Admission of Evidence Destruction (May 20, 2024)

In response to Petitioner's forensic analysis showing that the produced 93-second video was a secondary recording of a monitor, Nancy Gass admitted the original evidence was destroyed:

*"We sent you the only video my client has. **Her system deletes videos every 30 days.** The only way she knew how to preserve the video was to record it on her cell phone."*

Source: Email from carnationlaw@comcast.net to Petitioner, 5/20/2024.

B. Contradictory Representation to the Court (May 22, 2024)

Just 48 hours after admitting the deletion, Nancy Gass filed a formal response with the Court claiming:

*"The Defendant [Manning] **did not spoliage evidence**... the video still exists."*

Source: Answer to Petition for Review, Case No. 102950-1, 5/22/2024.

C. Knowledge of Rebuttal Evidence (January–February 2024)

Nancy Gass was in possession of Petitioner's contact logs (Exhibit A) as early as January 31, 2024. Despite knowing these logs proved 114 instances of contact, she argued to the Superior Court on June 28, 2024, that "no genuine issues of material fact" existed regarding Manning's claim of "no contact" for 11 years.

II. EVIDENCE OF FRAUD IN THE INDUCEMENT (MARK M. DEMARAY)

A. The "Impossible" Withdrawal Window (2013)

Attorney Mark M. Demaray drafted the "Agreement and Order for Communication and Contact" (Case No. 13-5-00050-3). The provision required Petitioner to notify both the Court and Manning within **48 hours** to withdraw consent to the relinquishment. Demaray knew Petitioner was **incarcerated** in a state facility where outgoing mail takes a minimum of 48 hours to reach a local recipient, making the right to withdraw legally and physically impossible to exercise.

B. Unenforceability by Design

The Agreement drafted by Demaray explicitly required a judge's signature to be enforceable (§1.1). However, Demaray never obtained the judge's signature, and the agreement was not mentioned in or submitted with the formal relinquishment hearing paperwork. Petitioner relied on this "agreement" to sign the relinquishment, not knowing the attorney had left it unsigned and unenforceable.

III. CHRONOLOGICAL SUMMARY OF MISCONDUCT PATTERN

Date	Actor	Act of Misconduct	Legal/Ethical Violation
2013	Demaray	Drafted "Agreement" with impossible 48-hour window from prison.	RPC 8.4(c) (Fraud/Deceit)
2013	Demaray	Induced relinquishment via unsigned, unfiled agreement.	RPC 1.4 (Candor to Client)
01/31/2024	Gass	Received Exhibit A proving 114 contact attempts.	RPC 3.4 (Fairness)
05/20/2024	Gass	Admitted original Ring video was deleted/spoliated.	Admission of Spoliation
05/22/2024	Gass	Formally denied spoliation to the Supreme Court.	RPC 3.3 (Candor to Tribunal)
06/21/2024	Gass	Argued Exhibit A was "not relevant" to the case.	Strategic Concealment
06/28/2024	Gass	Argued DVPO "adjudicated" civil issues (Res Judicata).	Judicial Estoppel

Date	Actor	Act of Misconduct	Legal/Ethical Violation
07/03/2024	Gass	Drafted SJ Order claiming rights "terminated in 2013."	Fraud on the Court

IV. VERIFICATION

I, Zackariah Jeremiah Bennett, certify under penalty of perjury under the laws of the State of Washington that the foregoing is true and correct and that the email quotes and document descriptions are accurate reflections of the record.

DATED this _____ day of March, 2026, at _____,
Washington.

Zackariah Jeremiah Bennett, Petitioner